

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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REBECCA ROBLES,

SECOND AMENDED COMPLAINT

**15 CV 2584 (DLC)
ECF Case**

Plaintiff,

vs.

The CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICERS
STEVEN LICHTIG, Shield 5508,
STEPHANIE DAVIS, 28218,
EMS LIEUTENANT TIMOTHY LINDBLOM,
in their individual and official capacities,

JURY TRIAL DEMANDED

Defendants.
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Plaintiff Rebecca Robles, by her attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This civil rights action arises from the illegal and violent detention of Rebecca Robles (“Plaintiff”) at the hands of New York City Police Department Officers and an Emergency Medical Services (“EMS”) Lieutenant who entered Plaintiff’s apartment based on an inaccurate report that Plaintiff posed a danger to herself, and despite seeing that Plaintiff clearly was not a danger to herself, they treated her as a prisoner in her own home and forcibly, violently took her to a hospital. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983 (“Section 1983”) against the individual defendants for false arrest and imprisonment, excessive force, and failure to intervene, and a *Monell* claim against the City of New York for the same constitutional violations. Additionally, Plaintiff asserts analogous claims under New York Law against

the individual defendants, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney's fees pursuant to applicable state and federal civil rights law.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (a)(3) and (4), this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights.

3. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all state law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy which gives rise to the federally based claims and causes of action.

VENUE

4. Venue is proper in the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391(b) because the acts complained of occurred in this district.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury on each and every one of her claims as pled herein, pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff Rebecca Robles is a 53-year-old woman, a United States citizen with no contacts with the criminal justice system, and at all relevant times a resident of the City of New York, State of New York.

7. The individually named defendants Police Officer Steven Lichtig (Shield # 5508) (“PO Lichtig”) and Police Officer Stephanie Davis (Shield #28218) (“PO Davis”) are and were at all times relevant herein officers, employees and agents of the New York City Police Department (“NYPD”) who, on the date of the incident giving rise to this complaint, were assigned to the NYPD 45th Precinct.

8. The individually named defendant EMS Lieutenant Timothy Lindblom (“Lt. Lindblom”) is and was at all times relevant herein an agent of the New York City Fire Department (“FDNY”) Bureau of Emergency Medical Services, Conditions 15.

9. Each individual defendant is sued in his individual and official capacity. At all times mentioned herein, each individual defendant acted under the color of state law, in the capacity of an officer, employee, and agent of defendant City of New York (“Defendant City”).

10. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized by law to maintain, direct, and to supervise the NYPD and FDNY, for which it is ultimately responsible.

NOTICE OF CLAIM

11. Plaintiff served a Notice of Claim on the Comptroller of the City of New York within ninety days of the incident, being assigned Claim # 2014PI023854. At least 30 days have elapsed since the service of the Notice of Claim, and adjustment and payment has been neglected or refused.

12. The City of New York demanded a hearing pursuant to General Municipal Law § 50-h, which hearing was held on October 8, 2014.

13. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

STATEMENT OF FACTS

14. On the evening of Saturday May 31, 2014, Plaintiff was in her apartment at 120 Dekruif Place (“the Apartment”) in Bronx, New York. Plaintiff’s brother-in-law, Juan Gonzalez (“Mr. Gonzalez”), also resides there and was in the Apartment.

15. Earlier that day, around 2:30 PM, Plaintiff received a text message on her cell phone from a member of her church, Carmen Valencia (“Ms. Valencia”). Ms. Valencia’s text message stated: “Hi Becky, thinking about u and [JM, Plaintiff’s son]. I pray that’s [sic] all is well. Love Carmen Valencia.” Ms. Valencia’s message included a photograph of Plaintiff sitting on a sofa smiling while giving the peace sign on both her hands.

16. Plaintiff received Ms. Valencia’s text message a couple of hours after Ms. Valencia sent it. Plaintiff saw the lovely photograph of her taken during happier times, and it made Plaintiff feel nostalgic.

17. Plaintiff had spent that Saturday alone at home, in her Apartment, where she spends almost all her time. The Apartment was particularly quiet and lonely on weekends because her son, JM, stayed with his father, her estranged husband, on weekends. During the week JM stayed with her and life was more lively.

18. Plaintiff replied around 5:00 PM to Ms. Valencia via text message (“the Text”), in which she vented her feelings a bit melodramatically: “Actually things are not

well forno [sic] me. Jm is fine because he's where he wants to be with dad. And me always left alone. Nobody gives 2 shits about me. Take care of u and ur family. Thanks for picture. Also I think it best to leave City Gate [their church]. Tired of the fake concerns about me bye. – Becky :) sorry for speaking to you like this I'm just fed up with this life. I wish someone would kill me already.”

19. The Text worried Ms. Valencia, but instead of contacting Plaintiff to clarify or assuage Plaintiff's feelings, Ms. Valencia called the pastor of the church, Alvin Torres (“Mr. Torres”). Mr. Torres, in turn, called 911 and reported that Plaintiff wanted to kill herself.

20. After sending the Text to Ms. Valencia, Plaintiff spent the remainder of that day at home. She had ordinary phone conversations with friends, sent numerous other text messages of more banal quality, like making babysitting plans with a family member.

21. In the evening, Plaintiff took a bath, took a sleeping pill, and prepared to go to bed. Ms. Valencia did not contact Plaintiff again that day.

22. Around 9:30 PM, Plaintiff went to bed. She woke up around 11:00 PM feeling thirsty. Plaintiff, wearing pajamas, got out of bed and walked to the kitchen to get a glass of tap water. Mr. Gonzales was in the kitchen cooking some Dominican food.

23. While in the kitchen, Plaintiff heard her doorbell ring. She opened the Apartment door and saw two Emergency Medical Technicians (the “EMTs”), EMT Antonio Davis and EMT Margarita Murfitt, who promptly walked into the Apartment without Plaintiff's permission.

24. The EMTs told Plaintiff they were there because Plaintiff's pastor had called the police to report that Plaintiff was trying to kill herself.

25. Plaintiff was shocked by the unverified exaggeration that she was some sort of danger to herself. She told the two EMTs that she did not want to hurt herself, she was sleeping, getting some water, and simply wanted to go back to sleep. The EMTs believed her, yet they would not leave.

26. Plaintiff showed the EMTs the Text on her cell phone and explained the family context giving rise to her feelings. Plaintiff spoke the truth: she spoke about her estrangement from her husband, how he has custody over JM on weekends and makes it impossible for Plaintiff to talk on the phone with JM. Plaintiff clearly explained why she felt sad and emotional, upset even – weekends were lonely without JM.

27. Because Plaintiff was so open, she revealed some of the darkness in her life, she revealed her life *living with* depression, revealed having voluntarily gone to the hospital years ago for mental health treatment.

28. Because of Plaintiff's history of depression, coupled with her extravagant Text, the EMTs felt further evaluation of Plaintiff was needed, and they told Plaintiff she needed to go to the hospital. Plaintiff tried to explain that was unnecessary. Mr. Gonzalez told the EMTs that Plaintiff had done nothing unusual or dangerous, just sleeping.

29. But the EMTs would not leave the Apartment. They tried persuading Plaintiff to go to the hospital and said they would call the police if she didn't go to the hospital voluntarily. Plaintiff still resisted the idea of going to the hospital.

30. Wondering why the pastor, if he was so concerned, didn't try contacting her, Plaintiff called Mr. Torres on her cell phone to express her frustration over his rash conduct, his outsourcing of his concern to pushy strangers, who were now inside her home threatening to take her to the hospital: "How could you do that? Why didn't you come check on me? You're a pastor. You live eight minutes away!"

31. Around 11:15 PM, Plaintiff texted Ms. Valencia, writing, "B any chance did u call cops on me".

32. The EMTs saw prescription pill bottles in Plaintiff's bedroom – pills for depression and hypothyroid – but they did not ask for any doctor's contact information. Even though Plaintiff was cooperative and honestly answered all questions asked of her by the EMTs, at no point did any of the EMTs ask whether Plaintiff was seeing a psychiatrist or psychologist (she was), and they did not take any other steps to contact mental health professionals familiar with Plaintiff.

33. The EMTs, improperly trained and confused by their duties that evening, were frustrated that Plaintiff would not simply go with them to the hospital.

34. Because Plaintiff refused to go to the hospital, the EMTs called for back-up, specifically the Conditions 15 unit, which dispatched Lt. Lindblom to the Apartment, due to an uncooperative "EDP" (emotionally disturbed person). Meanwhile, PO Lichtig and PO Davis were also dispatched to the Apartment.

35. PO Lichtig, PO Davis, and Lt. Lindblom arrived at the Apartment around 12:15 AM on June 1, 2014, and they immediately demanded that Plaintiff go with them, not caring to understand Plaintiff's condition, indifferent to her liberty and deaf to her honest, clear explanations; blind to the clear signs around the Apartment; unable or

unwilling to ask obviously relevant questions pertaining to Plaintiff's mental state.

Plaintiff refused to go to the hospital; she wanted to go back to sleep.

36. Lt. Lindblom briefly spoke to Plaintiff in the kitchen, trying to persuade her to go to the hospital. Lt. Lindblom told Plaintiff she *had* to go to the hospital – without conducting an independent evaluation of Plaintiff's mental condition, without asking questions that would reveal Plaintiff's state of mind, without asking Plaintiff if she was seeing any mental health professional. He simply took the uninformed word of EMT Davis, saw that Plaintiff was tense, stressed, and emotional, and rashly concluded Plaintiff needed to go to the hospital, exercising no critical scrutiny and doing nothing to verify if Plaintiff was in fact dangerous to herself or others.

37. Frightened by the strangers in her home, alert to the threat to her liberty and security, Plaintiff firmly resisted the idea of going to the hospital, her stressed but clear language plausibly insisting that she was fine and in no danger to herself or others, rationally asserting her right to remain free in her home and sleep in her bed, lucidly displaying a desire for liberty and dignity that a person bent on suicide does not exhibit. Plaintiff's words and behavior should have made it clear that the report of a suicidal individual was either a prank or an unfounded, uneducated exaggeration.

38. The individual defendants failed to look at Plaintiff's Apartment, as if it said nothing about her state of mind. Plaintiff's three-bedroom apartment was clean, orderly, presentable, and nicely decorated. There were neatly arranged family photographs, elegant furniture, books, a television and computer, paintings and Christian prayers on the walls, two clean bathrooms, three well-furnished bedrooms, a well-stocked kitchen –

every feature of her home indicated that Plaintiff is a person who cares for herself and her life.

39. As Plaintiff sat at her kitchen, trying to persuade the individual defendants to leave her in peace, her mouth was becoming increasingly dry and she had trouble speaking. Plaintiff stood up to get some water.

40. At this time, Lt. Lindblom – frustrated that Plaintiff refused to go to the hospital voluntarily, not caring to truly assess Plaintiff’s dangerousness – instructed PO Davis and PO Lichtig to seize Plaintiff for the purpose of taking her involuntarily to the hospital.

41. As Plaintiff stood up to get water, PO Davis grabbed Plaintiff, squeezed her arms around Plaintiff’s neck, clenched tight and pushed Plaintiff to the ground, causing Plaintiff’s head to slam into the ground.

42. PO Lichtig jumped in, adding his weight, and Plaintiff’s right leg became crushed and twisted beneath all the bodies, causing Plaintiff to scream in pain.

43. Plaintiff, nearly frozen on the floor in shock and pain, was dragged by PO Lichtig and PO Davis from her kitchen to her foyer, and handcuffed behind her back.

44. The individual defendants then put Plaintiff on an aluminum medical lift (also known as a “stair chair”), resembling a foldable seat, and strapped her to it while she was still handcuffed behind her back, sandwiching her hands between her back and the stair chair.

45. Plaintiff complained of pain to her wrists, but PO Davis and PO Lichtig would not remove her handcuffs, which were superfluous in light of her whole body being firmly strapped and restrained in the stair chair.

46. Rolled and carried on the stair chair, Plaintiff was taken from the Apartment and lifted into an ambulance outside, where an oxygen mask was tied to her face. She was driven to a psychiatric facility in Montefiore Hospital (“the Hospital”) in the Bronx, 1825 Eastchester Road, where she remained detained for about ten hours against her will.

47. In the Hospital, Plaintiff received X-rays of her hands and wrists, which were swollen and bruised and caused her physical pain that lasted for weeks. Her entire body, especially legs and back, was in great pain.

48. In the morning hours of June 1, 2014, psychiatrists at the Hospital spoke with the Plaintiff and believed her when she stated, as she had all along, that she did not want to harm herself. The doctors found that while Plaintiff had anxiety, depression, and poor coping skills, she posed no danger to others or herself, and they therefore allowed her to be discharged from the Hospital.

49. The NYPD failed to supervise and discipline PO Davis and PO Lichtig despite their histories of malicious and abusive behavior, ignoring the risk that they would engage in future misconduct, thereby encouraging them to continue to abuse their powers and violate the rights of civilians.

50. The City of New York lacks a clear and logical policy when it comes to dealing with people who are said to pose a harm to themselves. This is part of a greater failure by the NYPD and the FDNY to address mental health issues – or alleged mental health issues – in a sensitive and meaningful way. The ramshackle, threadbare, and improvisational customs and policies of dealing with people with reported mental health issues – such as suicidal impulses – leads to the false and unjust detention of ordinary citizens who in fact pose no danger to themselves or others.

51. The NYPD and FDNY, in supervising and training officers and Emergency Medical Technicians and their supervisors, have failed to teach the rules and laws of involuntary hospitalization, failed to train on discerning “dangerousness,” failed to teach the basic principle of distinguishing between rumor and fact, between a report of danger and actual danger. The custom and practice of having officers involuntarily hospitalize people who are merely reported to be suicidal without proper questioning and examination leads to the false detention of ordinary citizens who in fact pose no danger to themselves or others.

52. Epitomizing the failure to properly train New York City police officers and Emergency Medical Technicians is the fact that they are not trained to ask if the reportedly self-harming person is seeing a psychiatrist or psychologist; they are not trained to make a reasonable effort to contact that doctor or mental health professional even though that professional is often in the best position to shed light on his or her patient’s mental condition.

53. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of her constitutional rights under the Fourth Amendment to the United States Constitution;
- b. Severe emotional distress, degradation, and mental suffering;
- c. Physical pain and suffering.

SECTION 1983 CLAIMS

FIRST CLAIM

Deprivation of Federal Civil Rights Under Section 1983

54. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

55. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.

56. All of the aforementioned acts deprived Plaintiff of the rights guaranteed to citizens of the United States by the Fourth Amendment to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

57. The individual defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of her constitutional rights secured by 42 U.S.C. § 1983, and by the Fourth Amendment of the United States Constitution.

58. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM

False Arrest Under Section 1983

59. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

60. By the actions described above, Defendants deprived Plaintiff of her federal civil rights, including her Fourth Amendment right to be secure in her person against unreasonable searches and seizures, specifically her right to be free of false arrest.

61. As detailed above, the individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, without privilege or consent.

62. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM

Excessive Force Under Section 1983

63. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

64. By the actions described, the individual defendants deprived Plaintiff of her Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically her right to be free from excessive and unreasonable force.

65. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM

Failure to Intervene Under Section 1983

66. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

67. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of her constitutional rights by other law enforcement officers.

68. The individual defendants failed to intervene on Plaintiff's behalf to prevent, end, or truthfully report the violations of her constitutional rights despite knowing about such violations and having had a realistic opportunity to do so.

69. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged .

FIFTH CLAIM

Municipal Liability Under Section 1983

70. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

71. By the actions described, the Defendant City deprived Plaintiff of her Fourth Amendment right to be free of false arrest and excessive force through its failure to train, supervise, and discipline abusive and malicious officers; and through its failure to meaningfully train NYPD officers and EMS technicians and superiors in assessing and dealing with people *living with* mental illness who are reported to be dangerous to themselves.

72. As a direct and proximate result of the acts of Defendant City, Plaintiff sustained the other damages and injuries hereinbefore alleged.

PENDENT STATE CLAIMS

FIRST CLAIM

False Imprisonment under N.Y. State Law

73. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

74. The individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

75. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged .

SECOND CLAIM

Battery Under N.Y. State Law

76. Plaintiff realleges and reiterates all allegations set forth in the preceding

paragraphs as if stated fully herein.

77. As detailed above, the individual defendants intentionally touched Plaintiff in an offensive and harmful manner, and they intentionally subjected her to offensive and harmful contact.

78. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM

Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law (Against Defendant City of New York)

79. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

80. Defendant City owed a duty of care to Plaintiff to prevent the false arrest and mental and emotional abuse sustained by Plaintiff.

81. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

82. Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants could potentially cause harm.

83. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

84. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

FOURTH CLAIM

Respondeat Superior Under N.Y. State Law

85. Plaintiff realleges and reiterates all allegations set forth in the preceding

paragraphs as if stated fully herein.

86. Defendant City is the employer of the individual defendants.

87. Under the doctrine of *respondeat superior*, the Defendant City is responsible for the wrongdoing of its employees acting within the scope of their employment – in this case, the battery and false imprisonment committed by the individual defendants against Plaintiff.

88. As a direct and proximate result of the acts of the individual defendants detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Rebecca Robles in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to 42 U.S.C. § 1988, that Plaintiff is entitled to reasonable attorney's fees, costs and disbursements; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: December 22, 2015
New York, New York

_____/s/_____
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